

other words, in cases of conflict between Art. 123(2) and (3) EPC 1973 the **footnote solution is inadmissible** (see also T 307/05, T 614/12 and T 474/15).

3.2.2 Replacement of an added undisclosed feature by another feature disclosed in the application as filed without violating Article 123(3) EPC

In T 166/90 (decided before G 1/93, OJ 1994, 541, was issued) the board allowed an inadmissible feature in a granted claim to be replaced by other disclosed features, since this did not extend the scope of protection. The invention concerned an opaque plastic film. The product claim as granted contained a feature stating that the density of the film was less than the arithmetical density from the type and proportion of the individual components. In opposition proceedings the patent proprietor claimed a process for manufacturing the film, but without including in his process claim the density-related feature. The board examined whether this would broaden the scope of the patent, asking if the process claim features which replaced the deleted feature necessarily limited the claim to films – like that in the granted product claim – with a density less than the arithmetical one. The board concluded that, with a probability bordering on certainty, the process now claimed would produce an opaque film of a density less than that arithmetically derivable from the type and proportion of its individual components.

In T 250/05 the board, following the principles set out in G 1/93, came to the conclusion that the patent could not be maintained unamended and that the patent could only be maintained if there was a basis in the application as filed for replacing such subject-matter without violating Art. 123(3) EPC. The sixth auxiliary request met both prerequisites.

As noted in T 1127/16 (in which the board summarised "workarounds" for resolving the inescapable trap between the requirements of Art. 123(2) and (3) EPC), an added undisclosed feature, embracing one embodiment of the description, can be **replaced by a broader feature**, also covering an additional embodiment of the description, if the undisclosed feature is not so clear in its technical meaning in the given context that it could be used to determine the extent of protection without interpretation by reference to the patent's description and the drawings and it is quite clear from the description and the drawings and also from the preceding examination proceedings that the further embodiment belongs to the invention (T 371/88).

In the following cases the exception set out in G 1/93, Headnote 1, was invoked by the patent proprietor, but the board found that the requested replacement was not allowable under Art. 123(3) EPC: T 729/11, T 108/12, T 1833/13 and T 469/14.

3.2.3 Deletion of added undisclosed feature, which has no technical meaning, without violating Article 123(3) EPC

In G 1/93 (OJ 1994, 541), point 4 of the Reasons, the Enlarged Board of Appeal noted with regard to previous decisions of the boards of appeal that it did not seem to be disputed that an added undisclosed feature without any technical meaning may be deleted from a claim without violating Art. 123(3) EPC, as held in case T 231/89.

In T.2151/14 the board had to deal with the omission from claim 1 as granted of the term "publishing" used in connection with the server to which the claimed method claim related. The board noted that in the application as filed, the term "published" appeared to be used as a synonym for "made available", which, however, was an implicit function of a server. Beyond this, in its broadest interpretation, the term "publishing" in claim 1 as granted had no technical significance. It could therefore be omitted without infringing Art. 123(3) EPC (see G 1/93, OJ 1994, 541, point 4 of the reasons). See also T.958/15.

3.2.4 Added undisclosed feature, which does not provide a technical contribution and does not contravene Article 123(2) EPC

G 1/93 (OJ 1994, 541) stated that the underlying idea of Art. 123(2) EPC 1973 was clearly that an applicant should not be allowed to improve his position by adding subject-matter not disclosed in the application as filed, which would give him an unwarranted advantage and could be damaging to the legal security of third parties relying on the content of the original application. If, however, an added feature merely excluded protection for part of the subject-matter of the claimed invention as covered by the application as filed, the adding of such a feature could not reasonably be considered to give any unwarranted advantage to the applicant. Nor did it adversely affect the interests of third parties. Therefore, a feature which had not been disclosed in the application as filed but which had been added to the application during examination was not to be considered as subject-matter which extended beyond the content of the application as filed within the meaning of Art. 123(2) EPC 1973, if it **merely limited the protection conferred** by the patent as granted by excluding protection for part of the subject-matter of the claimed invention as covered by the application as filed, **without providing a technical contribution** to the subject-matter of the claimed invention (see also T.112/95).

These principles were in general confirmed in G 2/10 (OJ 2012, 376), see also G 2/98 (OJ 2001, 413). Pursuant to G 2/10 it was, however, evident from the context that by introducing the "technical contribution" criterion in G 1/93 the Enlarged Board had not intended to amend the definition concerning when an amendment was allowable under Art. 123(2) EPC generally, but that it only had sought a way of avoiding the potentially fatal consequences of the patentee being caught in the "inescapable trap" between the requirements of Art. 123(2) and (3) EPC. See also T.1937/17 and T.768/20.

The question of whether an added feature made a technical contribution has been discussed in numerous decisions.

In T.384/91 (OJ 1995, 745) it was held that the added feature did make a technical contribution. This decision was based on the following considerations: the example mentioned by the Enlarged Board illustrated a case where the feature was clearly not merely a limitation. However, the borderline beyond which a feature was no longer to be considered as making a technical contribution to the subject-matter of the claimed invention and was merely limiting the protection conferred, was not co-terminous with this example but lay between it and the limit of complete technical irrelevance. According to the board this view was consistent with the fact that the Enlarged Board had rejected relevance as a criterion for novelty and inventive step, which would also have implied a

comparison with the cited prior art documents. The board explained that the term "invention" did not necessarily imply the presence of novelty and inventive step, as was apparent from the wording of Art. 52, 54 and 56 EPC 1973. The board concluded that there was no need to take into account the prior art documents, but that the assessment of whether the exception for mere limitations applied in a particular case should depend only on the **technical relationship** of the added feature to the content of the application as originally filed, as understood by a skilled reader. At the least, a feature went beyond providing a mere limitation not involving a technical contribution to the invention if it interacted with the way in which the other features of the claim solved the technical problem, as it was understood from the application as originally filed.

In case T 64/96, a patent relating to a cover for automobile sun visor mirrors comprising rectangular plates overlapping and connected together in chain-like succession was revoked by the opposition division. The third auxiliary request of claim 1 was amended in that it was included as an additional feature that lugs were "integrally formed in said plates". The board came to the conclusion that applying the criterion, as set out in G 1/93 (OJ 1994, 541) and T 384/91 (OJ 1995, 745), to the case at issue, it could be seen that the feature in question did indeed make a technical contribution to the subject-matter of the claim since forming the lugs integrally with the plates led to a simpler and cheaper construction of cover which, at least by implication, was the technical problem which the invention set out to solve.

In T 518/99 the board held that the technical significance of a feature in a claim was not governed by its relevance for the assessment of novelty and inventive step vis-à-vis the available prior art, as had been argued by the appellant, but by its **contribution to the technical definition** of the claimed subject-matter, to be assessed by the skilled person in the light of the original disclosure. Otherwise, the decision about the technical significance of a feature would be subject to different interpretations dependent on the respectively available prior art. The board also rejected the appellant's argument that the disputed feature was technically meaningless because it was unrelated to the essence of the claimed invention. In this context the board referred to G 2/98 (OJ 2001, 413) where the Enlarged Board had found it problematic to try to distinguish between technical features which were related to the function and effect of an invention and technical features which were not, because there were no clear and objective criteria for making such a distinction, which could thus give rise to arbitrariness.

In T 1779/09 the board considered that a limiting feature which generally would not be allowable under Art. 123(2) EPC could, under certain conditions, nevertheless be maintained in the claim of an opposed patent in the particular situation addressed in decision G 1/93. It then complied with Art. 123(2) EPC by way of a legal fiction. In the case at issue, the term "only" was introduced during the examination proceedings and successfully objected to under Art. 100(c) EPC in proceedings before the opposition division by the former respondent. Since the board considered the term to be truly limiting, its deletion would extend the protection conferred and thereby infringe Art. 123(3) EPC. However, the board held that the exclusive limitation did not influence the solution of the technical problem as understood from the application as originally filed, and hence provided no technical contribution to the claimed invention (see also T 384/91). It merely

excluded protection of part of the invention described in the application, thus not giving any unwarranted advantage to the applicant.

In T.592/99 the board observed that in the case of a product claim concerning a composition defined by its components and their relative amounts given in terms of ranges, it could not be accepted that such ranges, which constituted essential features, did not provide a technical contribution to the subject-matter of the claimed invention, as suggested by the appellant. Any amendment to the ranges had to have the effect of modifying the claimed subject-matter, and thus also provided a technical contribution. If the newly claimed limited range were allowed even though unsupported, any subsequent selection invention based on the new range would have to be refused as not novel, which would otherwise not necessarily be the case. To allow this would, of course, give an unwarranted advantage to the patentee, contrary to the purpose of Art. 123(2) EPC 1973. In the board's view, that was exactly what was meant in the "typical example" given in point 16 of G 1/93, "where the limiting feature is creating an inventive selection not disclosed in the application as filed or otherwise derivable therefrom". Therefore the new feature constituted added subject-matter.

The invention in T.2230/08 concerned a method of regenerating a catalyst/absorber. The undisclosed modification contained in claim 1 as granted and still present in claim 1 of the auxiliary request would be prejudicial to third parties relying on the invention as described in the application as originally filed, as that undisclosed modification which was technically sensible might possibly be the basis for a valuable invention. Claim 1 of the auxiliary request was not restricted to any specific method which would deprive the definition of the temperature of the regenerating gas of all technical contribution within the context of that claim. In the absence of any additional disclosed restricting feature to that effect, the temperature of the incoming regenerating gas was therefore considered to interact with the remaining features of the claim in such terms that it influenced the solution of the technical problem which could be understood from the application as originally filed. It followed that the condition that missing technical contribution be provided, set out in decision G 1/93 (OJ 1994, 541), was not met in the case at issue.

In T.287/14 the board held that the disclaimer "wherein the composition does not contain a beta-nucleating agent" added to the claim was a feature providing a technical contribution to the claimed subject-matter. The disclaimer, by modifying the technical characteristics of the matrix phase of the polyolefin composition of claim 1, gave the appellant an unwarranted advantage by restricting the claimed subject-matter to a group of polyolefin compositions having specific technical characteristics and properties.

For further cases which did not fall under the exception of G 1/93, Headnote 2, because the added feature provided a technical contribution to the claimed invention, see e.g. T.913/15, T.958/15, T.312/16.

3.2.5 Resolving the conflict in cases of clerical errors or incompatibility between the claims as granted and the description

Decision T 438/98, which concerned the correction of an obvious clerical error, followed T 271/84 (OJ 1987, 405), T 371/88 (OJ 1992, 157), T 673/89 and T 214/91, in ruling that amending a claim to remove an inconsistency did not contravene Art. 123(2) or Art. 123(3) EPC 1973 if the claim as corrected had the same meaning as the correct interpretation of the uncorrected claim in the light of the description.

However, in T 1018/02 the board held that the description could not be used to give a different meaning to a claim feature which in itself imparted a clear, credible technical teaching to the skilled reader. The feature would thus have had to be deleted to achieve consistency with the original disclosure (Art. 123(2) EPC). But this would have contravened Art. 123(3) EPC and therefore the patent was revoked. See also T 1202/07.

In T 195/09, on the conflict between Art. 123(2) and (3) EPC, the appellant referred to T 108/91 in which it had been decided that an inaccurate technical statement in a granted claim, which statement was evidently inconsistent with the totality of the disclosure of the patent and would contravene the requirements of Art. 123(2) EPC, could be replaced with an accurate statement of the technical features involved without infringing Art. 123(3) EPC. The board in T 195/09 pointed out that this decision had been clearly overruled by G 1/93 (see also T 1746/10, T 1896/11).

In T 131/15 the interpretation of the expression "opposite direction" in claim 1 as granted in a precise geometrical sense would have excluded all of the described embodiments from protection and would have resulted in amended claim 1 of the sole request contravening Art. 123(3) EPC. However, in the light of the principles set out in G 2/88 (OJ 1990, 93) with reference to Art. 69(1) EPC 1973 and its Protocol, the board came to the following conclusion: Where an expression in a granted claim, taken literally and in isolation, would have the effect of excluding all of the disclosed embodiments from the scope of protection, but where a definition of the expression may be derived from the patent itself which would locate (at least some of) the disclosed embodiments within the ambit of the claim, and provided this definition was not manifestly unreasonable, having regard to the normal meaning of the words used in the expression, then in judging compliance with the requirements of Art. 123(3) EPC, the scope of protection should normally be considered to include at least that which would fall within the terms of the claim understood according to this definition. Since the description provided a basis for interpreting the expression "opposite direction" less restrictively, the board considered that Art. 123(3) EPC was not infringed by reinstating in claim 1 of the sole request an originally disclosed part of the feature concerned, which had been omitted in the granted claim.

In T 1127/16, contrary to the appellant's (patent proprietor's) view, the board held that T 131/15 concerned a situation entirely different from the case in hand. The board observed that, irrespective of the fact that such a comprehensive and intricate test as suggested in T 131/15 could arguably place an undue burden on third parties when trying to establish the "true" (i.e. intended) scope of protection conferred by a granted patent, in T 131/15 the issue was that if the expression in question was read literally, there would be